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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Claudio Filippi, deputy secretary general;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data (Legislative Decree of June 30, 2003, n. 196), as amended by Legislative Decree of August 10, 2018, n. 101, containing provisions for the adaptation of the national legal system to the aforementioned Regulation (hereinafter "Code");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the deputy secretary general pursuant to Article 15 of the Guarantor's Regulation n. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISED

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

With a complaint dated July 21, 2022, Engineer XX complained about receiving unwanted promotional emails from Grizzaffi Management S.r.l. (hereinafter Grizzaffi or the Company). On September 11, the Engineer XX supplemented the complaint by sending copies of further emails received despite the opposition expressed on July 17, 2022.

By certified email dated November 8, 2022, Grizzaffi, through its lawyer, stated that the sending of emails was directed, in addition to the complainant, to professionals in the construction sector and that it had extracted the names from various public lists (including the Regional List of Certifiers of the Liguria Region). In particular, the Company stated that it had processed such data based on its legitimate interest, citing the "interpretation of the combined provisions of Articles 47 of the GDPR and 130, paragraph 4, of Legislative Decree 196/2003." It also added that at the bottom of the emails there was a link for unsubscribing that the complainant had never used. Furthermore, regarding the complained emails received by the complainant after the opposition, the Company stated that "on July 21, 2022, due to a malfunction of the management software, the email address of Engineer XX, which was promptly deleted, remained registered in Grizzaffi's archives and, erroneously, an additional email was sent." The Company assured that it subsequently took steps to delete it.

In response to these statements, the complainant sent additional promotional emails received even after the date of July 21, specifically until October 16, 2022.

2. THE CONTESTATION OF VIOLATIONS

The Office proceeded to contest the violations detected with the initiation of the procedure on November 25, 2022, prot. n. 71308/22, notified by certified email on the same date to the Company's lawyer, who was duly authorized.

Hereby fully recalling the reasons expressed in the aforementioned act, Grizzaffi was contested for violating Articles 5, paragraph 1, letter a); 6, paragraph 1, letter a); 17 and 21 of the Regulation as well as Article 130 of the Code, since the sending of promotional communications via email was found to

have been carried out without the consent of the data subjects and the rights of deletion and opposition exercised by the complainant were not respected.

Following the act of contestation, a defense memorandum was sent by Grizzaffi's lawyer on December 21, 2022, which is also to be understood as fully recalled and reproduced here, in which, fully referring to what was stated in the note of November 8, 2022, the latest available balance sheet was transmitted.

3. LEGAL ASSESSMENTS

With reference to the factual profiles highlighted above, also based on the statements made by Grizzaffi during the investigation, for which the declarant is responsible pursuant to Article 168 of the Code, the following legal assessments are formulated.

It should first be clarified that Article 47 of Regulation (EU) 2016/679 (Regulation) is improperly cited as it is titled "binding corporate rules." It is likely that the defender actually intended to refer to Recital 47 of the Regulation, which hypothesizes the use of legitimate interest in cases where data is processed for direct marketing activities.

While it remains true that the legal value of recitals is purely interpretative and not prescriptive, the example in the aforementioned Recital 47 would not be applicable in this case. It must be recalled that promotional activities carried out through electronic communication channels (such as email) are subject to the special regulation originating from Directive 2002/58/EC, transposed into Italian law with Title X of the Code regarding the protection of personal data (Code). In particular, reference is made to the provisions of Article 130 of the Code, according to which the sending of communications by automated means is permitted only with the consent of the contractor or user, and a derogation may be admitted.

****only in the case where the email address has been provided by the data subject in the context of a sale of similar goods or services. This specific exception is provided for in paragraph 4 of Article 130, which the Company has cited but which does not appear to be applicable in this case since the contacted individuals, such as Engineer XX, had not provided their email address in the context of a prior contractual relationship, having no knowledge of either the data controller or the processing.****

****Regarding the use of public sources to collect data intended for promotional activities, the Authority has expressed itself multiple times. As clarified first with the Guidelines on promotional activities and combating spam of July 4, 2013, "without consent... it is not possible to send promotional communications using the aforementioned tools even if the personal data is taken from public registers, lists, websites, acts, or documents known or knowable by anyone. Similarly, without the prior consent of the data subjects, it is not lawful to use the email addresses contained in the national index of certified email addresses of businesses and professionals for sending promotional emails... established to facilitate the submission of applications, declarations, and data, as well as the exchange of information and documents between public administration and businesses and professionals in electronic mode." More recently, the Authority reiterated that the presence of data in public lists or freely accessible sources, such as websites or social networks, does not authorize its use for promotional purposes since such purposes are incompatible with the original ones and therefore do not fall within the legitimate expectations of the data subjects.****

****It is therefore evident that no promotional email could be sent to Engineer XX, just as to the other recipients, without appropriate consent. In this regard, the fact that a link was available to express opposition is of no relevance since, even before considering its content and any measures to contain harm, the very sending of the email is unlawful. For these reasons, it is believed that the violation of Article 6, paragraph 1, letter a) of the Regulation and Article 130 of the Code has been established.****

****The complainant also reported continuing to receive promotional emails despite the request for opposition expressed via certified email. In this regard, the Company stated that it had acted to comply with Engineer XX's request of July 17, 2022, but had nevertheless sent another email on July 21 due to a malfunction of the management software that had retained the complainant's contact information despite the deletion. However, it is noted that Engineer XX also attached some emails received after July 21. Furthermore, as evidenced by the observations sent by the complainant via certified email on**

November 9, 2022, the sending of emails continued even in October until the receipt of the Authority's request for information. For these reasons, it is believed that the violation of Articles 5, paragraph 1, letter a), 17, and 21 of the Regulation has been established.**

All of the above considered - given that the Company has never stated that it has ceased the conduct, limiting itself to deleting the complainant's data - pursuant to Article 58, paragraph 2, letter f) of the Regulation, it is necessary to impose on Grizzaffi the prohibition of processing personal data for promotional purposes, included in the database subject to investigation, for which it is unable to demonstrate the acquisition of appropriate consent; as a consequence of this prohibition, since any processing of such data, including retention, is unlawful, it is deemed necessary, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to order Grizzaffi to promptly proceed with the deletion of said data, except for those that must be retained for compliance with a legal obligation (such as the data of individuals who have purchased services) or for the defense of a right in judicial proceedings, and it remains understood that such data cannot be used for any other purpose for which the consent of the data subject is required.

Furthermore, in consideration of the unlawfulness of the conduct, it is believed that the conditions for the application of an administrative monetary sanction pursuant to Article 58, paragraph 2, letter i) of the Regulation are met.

****4. ORDER FOR THE IMPOSITION OF THE ADMINISTRATIVE MONETARY SANCTION****

Based on the above, several provisions of the Regulation and the Code have been violated in relation to processing activities carried out by Grizzaffi, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, if, in relation to the same processing or related treatments, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative monetary sanction does not exceed the amount specified for the most serious violation, with the consequent application of only the sanction provided for in Article 83, paragraph 5, of the Regulation.

For the purposes of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, in setting the maximum penalty at the sum of 20 million euros or, for enterprises, at 4% of the worldwide annual turnover of the previous financial year if higher, specifies the methods for quantifying the aforementioned sanction, which must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1, of the Regulation), identifying, for this purpose, a series of elements, listed in paragraph 2, to be evaluated when quantifying the related amount.

In fulfillment of this provision, hypothesized, based on the economic-financial information... available, that is, based on the last financial statement filed (December 31, 2021), the occurrence of the first hypothesis provided for by the aforementioned Article 83, paragraph 5, and thus quantified at 20 million euros as the maximum applicable fine, the following aggravating circumstances must be considered:

1. the wide scope of the treatments since, as confirmed by the Company itself, the promotional activity concerned names included in various public lists and considering that Grizzaffi stated it had only deleted the data of the complainant believing its actions to be correct (Article 83, paragraph 2, letter a) of the Regulation);
2. the severity of the violations detected, due to the fact that the data was processed for promotional purposes, not only in the absence of consent but in total unawareness of the data subjects, of the Regulation) and that regarding the prohibition of using data acquired in the manner in question, the Authority has expressed itself for a long time and repeatedly (Article 83, paragraph 2, letter a);

As mitigating factors, it is considered that the following can be taken into account:

1. the negligent nature of the violation, as the Company believed it was acting in good faith by carrying out an activity that does not constitute its core business but is entirely ancillary to the entrepreneurial activity (Article 83, paragraph 2, letter b) of the Regulation);
2. the provision of an unsubscribe link at the bottom of the emails, which constitutes a, albeit minimal, measure to contain potential damages for the data subjects, although it is not sufficient by itself to

- replace the requirement of consent (Article 83, paragraph 2, letter c) of the Regulation);
3. the absence of relevant previous violations committed by the data controller (Article 83, paragraph 2, letter e) of the Regulation);
 4. the degree of cooperation in the interaction with the supervisory Authority (Article 83, paragraph 2, letter f) of the Regulation);
 5. the nature of the data processed, consisting of common personal and contact data (Article 83, paragraph 2, letter g) of the Regulation);

In an overall perspective of necessary balancing between the rights of the data subjects and the freedom of enterprise, considering that the Company has presented a simplified balance sheet as a microenterprise, in the context of the first application of the administrative pecuniary sanctions provided for by the Regulation, it is necessary to prudently evaluate the aforementioned criteria, also in order to limit the economic impact of the sanction.

Therefore, it is believed that - based on the overall elements mentioned above - an administrative sanction of a payment of 10,000.00 euros (ten thousand) should be applied to Grizzaffi, equal to 0.05% of the maximum applicable fine of 20 million euros.

It is noted that the conditions referred to in Article 17 of the Garante Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Garante, for the annotation of the violations detected here in the internal register of the Authority, provided for by Article 57, paragraph 1, letter u) of the Regulation, are met.

It is also believed - considering the extent of the violations detected - that, pursuant to Article 166, paragraph 7, of the Code, and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website should proceed as an accessory sanction.

ALL OF THE ABOVE HAVING BEEN STATED, THE Garante

- a) pursuant to Article 57, paragraph 1, letter f), of the Regulation, declares unlawful the processing described in the terms of the motivation carried out by Grizzaffi Management Srl, based in Corleone (PA), via Roma 35-37, VAT No. 05847910824;
- b) pursuant to Article 58, paragraph 2, letter f) prohibits Grizzaffi Management Srl from processing personal data for promotional purposes, included in the database subject to investigation, for which it cannot demonstrate the acquisition of suitable consent;
- c) as a consequence of this prohibition, pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders Grizzaffi Management Srl to promptly delete said data, except for those that must be retained for compliance with a legal obligation (such as the data of individuals who have purchased services) or for the defense of a right in court, and without prejudice to the unusability of such data for any other purpose for which the consent of the data subject is required.

ORDERS

pursuant to Article 58, paragraph 2, letter i), of the Regulation, Grizzaffi Management Srl, represented by its legal representative, to pay the sum of 10,000.00 euros (ten thousand) as an administrative pecuniary sanction for the violations indicated in the motivation; it is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction.

ORDERS

the aforementioned Company, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of 10,000.00 euros (ten thousand), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981;

DISPOSES

- a) pursuant to Article 166, paragraph 7, of the Code, the

****Full publication of this provision****

on the website of the Authority;

b) pursuant to Article 17 of the Authority's Regulation No. 1/2019, the annotation in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted.

It is reminded that, pursuant to Article 170 of the Code, anyone who, being obliged, does not comply with this prohibition on processing is punished with imprisonment from three months to two years and that, in the event of non-compliance with the same provision, the sanction referred to in Article 83, paragraph 5, letter e) of the Regulation is also applied in an administrative context.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, by submitting a petition to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, May 17, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE DEPUTY SECRETARY GENERAL

Filippi